

compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Further, sanctions are mandatory under the controlling statute.

After reviewing the papers submitted by counsel, and applying the foregoing statutory and decisional authorities, the Court finds good cause to grant both Motions and Sanctions.

Ruling

The Court grants the following Motions:

1. Defendants Capital Benefit, Inc.; Provident Trust Group FBO George S. Simmons Rollover IRA #3900656 and Lawrence E. Elkins And Norma J. Elkins, Trustees And Lawrence C. Henig, Trustee; Total Lender Solutions, Inc. (collectively “Defendants”) motion for an order that the truth of all specified matters in Defendants Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi (“Velinedi”) on July 23, 2025, is **granted** and each of the foregoing requests are deemed admitted.

The Court grants and issues this order that (1) the truth of all specified matters in Defendant’s Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of the Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi (“Velinedi”) on July 23, 2025, are deemed admitted, (2) Sanctions in the amount of \$860.00 jointly and severally against Plaintiffs **but not against Plaintiff’s** current Counsel, and (4) Sanctions shall be paid no later than ten (10) days from the date of this Order.

2. Defendants second motion is for an order that the truth of all specified matters in Defendant’s Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Sridevi Kota (“Kota”) on July 23, 2025, is **granted** and each of the foregoing requests are deemed admitted.

The Court grants and issues this order: (1) that the truth of all specified matters in Defendants’ Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Kota on July 23, 2025, are deemed admitted, (2) Sanctions in the amount of \$860.00 jointly and severally against Plaintiffs **but not against** Plaintiff’s current Counsel, and (3) Sanctions shall be paid no later than ten (10) days from the date of this Order.

3. Defendants’ counsel shall prepare and efile a proposed order conforming to the foregoing and shall attach a copy of this tentative ruling to the proposed order.

***HEARING ON MOTION FOR DISCOVERY DEEM MATTERS ADMITTED AGAINST PLTF SRIDEVI KOTA
FILED BY: CAPITAL BENEFIT, INC.**

TENTATIVE RULING:

See Line No. 20.

22. 9:01 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

***HEARING ON MOTION FOR DISCOVERY ENTRY OF COMMISSION ORDERS FOR ISSUANCE OF OUT-
OF-STATE SUBPOENAS**

FILED BY: TEXACO INC.

TENTATIVE RULING:

Summary:

Defendant Texaco's Motion for Entry of a Commission Orders authorizing the issuance of out-of-state subpoenas to Plaintiff Carl Prewitt's medical providers in Alabama, including:

- 1) Grandview Medical Center
- 2) Grandview Diagnostic Center
- 3) Grandview Medical Group – Neurology
- 4) Grandview Medical Group - Neurosurgery
- 5) UAB Medicine Health Information Management
- 6) UAB St. Vincent's East
- 7) Nelms Pharmacy
- 8) Orthos Alabama Spine and Sports.

is **vacated** pursuant to Notice provided by Counsel Jennifer Bonneville on January 26, 2026. No appearance is necessary.

23. 9:01 AM CASE NUMBER: C23-02575

CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK

***HEARING ON MOTION FOR DISCOVERY MONETARY SANCTIONS IN THE AMOUNT OF \$46,343.15
FOR EGREGIOUS DISCOVERY MISCONDUCT**

FILED BY: ANDRADE, MATTHEW

TENTATIVE RULING:

The Court continues this Motion *sua sponte* to February 25, 2026 at 9:00 a.m. No appearance is required on January 28, 2026. The Parties are **ordered** to meet and confer by telephone, in-person or remote conference no later than February 15, 2026 to resolve this request for sanctions informally before the hearing of this motion. The Court orders the Parties to submit a declaration to the Court no later than five (5) days before the hearing to provide the court with a detailed account of the meet and confer discussions and any resolution of these issues.

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel and motion for sanctions should be considered a last resort when trying to prepare a case for